

## 23STCV08060 23STCV08060

County: los-angeles

Division: Civil Law and Motion

Department: 408

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Case Number: 23STCV08060 Hearing Date: September 3, 2026 Dept: 408

1.

Defendant 7-Eleven, Inc.'s Demurrer to Plaintiff

Juan Turner II's Complaint is SUSTAINED

as to the fourth and fifth causes of action. The court will inquire whether leave to amend should be granted at the hearing.

2.

Defendant 7-Eleven, Inc.'s Motion to Dismiss is DENIED.

I.

### BACKGROUND

On April 12,

2023, Plaintiff Juan Turner II ("Plaintiff") filed a complaint against

Defendant 7-Eleven, Inc. and John Doe ("Defendants") alleging causes of action for:

1. Assault;

2. Battery;

3. Intentional Infliction of Emotional Distress;

4. Negligence; and

5. Negligent Hiring, Supervision, and Retention.

On

February 11, 2026, the court dismissed Defendant John Doe without prejudice.

On

April 7, 2026, Plaintiff filed Amendments to the Complaint naming Does 1 and 2 as Fernando I. Santos and Maria E. Santos, respectively.

On

April 17, 2026, Defendant 7-Eleven, Inc. ("Moving Defendant" or "7-Eleven") filed this Motion to Dismiss and Demurrer. On June 5, 2026, Plaintiff filed oppositions. On June 10, 2026, Moving Defendant filed replies.

II.

DEMURRER

A.

Legal Standard

"The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of" various grounds listed in statute. (Code Civ. Proc., § 430.10.)

When

considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on

the face of the pleading or via proper judicial notice. (*Donabedian v.*

*Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests

the pleading alone, and not the evidence or facts alleged." (*E-Fab, Inc.*

*v. Accountants, Inc. Servs.* (2007) 153 Cal.App.4th 1308, 1315.) As such,

the court assumes the truth of the complaint's properly pled or implied factual

allegations. (*Ibid.*) The only issue a demurrer is concerned with is

whether the complaint, as it stands, states a cause of action. (*Hahn v.*

*Mirda* (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave

to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully.

(Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.)

However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

## B. Discussion

Moving Defendant demurs to the fourth and fifth causes of action alleged in Plaintiff’s complaint pursuant to Code of Civil Procedure section 430.10, subdivision (e), on the grounds that Plaintiff fails to state sufficient facts to constitute such causes of action.

1.

4th Cause

of Action – Negligence

In order to state a claim for negligence, a plaintiff must allege the elements of (1) “the existence of a legal duty of care,” (2) “breach of that duty,” and (3) “proximate cause resulting in an injury.” (McIntyre v. Colonies-Pacific, LLC (2014) 228 Cal.App.4th 664, 671.)

Moving

Defendant argues that Plaintiff improperly attempts to impose vicarious liability for an intentional assault allegedly committed by an employee of 7-Eleven as acts of deliberate physical aggression fall outside the course and scope of employment as a matter of law and therefore cannot support vicarious liability. (Demurrer, at p. 5.)

An

employer is vicariously liable for an employee’s tort under the doctrine of respondeat superior if the tort was committed within the scope of the employment. (Montague v. AMN Healthcare, Inc. (2014) 223 Cal.App.4th 1515, 1520.) An employee’s willful or malicious tort may fall within the scope of employment even without the employer’s authorization. (Flores v. AutoZone West, Inc. (2008) 161 Cal.App.4th 373, 379.)

The

complaint alleges that on April 22, 2021, Plaintiff was a patron of a 7-Eleven store located at 7040 Sunset Blvd., #A, Los Angeles, CA 90028 (“Subject

Premises") where Plaintiff was approached by Defendant John Doe, an employee of 7-Eleven, and instructed to wear a mask while at the Subject Premises. (Complaint, ¶¶ 7-8.) The complaint further alleges that as Plaintiff did not have a face mask, Plaintiff began to exit the Subject Premises when John Doe, suddenly and without warning, physically attacked and assaulted Plaintiff with a baseball bat causing injuries. (Id., ¶¶ 4, 8.) Plaintiff also alleges that John Doe was acting within the course and scope of his employment as a security officer for 7-Eleven. (Id., ¶¶ 13, 32.)

The court finds that Plaintiff fails to allege facts showing John Doe was acting in the scope of his employment when he allegedly committed the underlying intentional torts. Plaintiff alleges as much only by conclusion. Because the complaint is devoid of facts that link John Doe's conduct to his employment, Plaintiff fails to state a vicarious claim against Moving Defendant.

Accordingly, the demurrer is sustained as to the fourth cause of action.

## 2. 5th Cause of Action - Negligent Hiring, Supervision, and Retention

The elements of a cause of action for negligent hiring, retention, or supervision are: (1) the employer's hiring, retaining, or supervising an employee; (2) the employee was incompetent or unfit; (3) the employer had reason to believe undue risk of harm would exist because of the employment; and (4) harm occurs. (Evan F. v. Hughson United Methodist Church (1992) 8 Cal.App.4th 828, 836-837.)

Moving Defendant argues that Plaintiff fails to allege facts establishing that 7-Eleven had prior knowledge that John Doe was unfit or posed a risk of harm to support a claim for negligent hiring, retention, or supervision. (Demurrer, at pp. 5-6.)

The court finds that Plaintiff fails to allege sufficient facts establishing that Moving Defendant knowledge beyond a conclusory allegation that 7-Eleven "knew

or should have known that [John Doe] was incompetent and unfit and that his incompetence and unfitness created a particular risk to others, including Plaintiff." (Complaint, ¶ 41.)

Accordingly,  
the demurrer is sustained as to the fifth cause of action.

III.

#### MOTION TO STRIKE

A.

##### Legal Standard

"The court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion or on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case." (Code Civ. Proc., § 583.410.) "The court may not dismiss an action pursuant to this article for delay in prosecution except after one of the following conditions": (1) service is not made within two years or (2) the action is not brought to trial within three years. (Code Civ. Proc., § 583.420.)

In ruling on a motion to dismiss, the court may consider the court file, diligence in seeking effective service of process, the extent to which parties engaged in any settlement negotiations, diligence in pursuing discovery, nature and complexity of the case, pendency of other litigation based on common facts, nature of any extensions of time or other delay, condition of the court's calendar, whether the interests of justice are best served by dismissal, and any other facts or circumstances relevant to fair determination. (Cal. Rules of Court, rule 3.1342, subd. (e).)

B.

##### Discussion

Moving Defendant moves to dismiss the instant action pursuant to Code of Civil Procedure section 583.420 on the grounds that Plaintiff failed to serve 7-Eleven within two years of commencing this action and Plaintiff has not brought his action to trial within three years. (Motion, at pp. 4-5.)

In opposition, Plaintiff contends that multiple Proofs of Service filed demonstrate Plaintiff's attempts to serve Moving Defendant since 2024. (Opp., at pp. 2-3.) Plaintiff contends that, at the time of service in 2024, Plaintiff served the address known to Plaintiff to be the agent for service of process for Moving Defendant. (Hakim Decl., ¶¶ 3-4.) Plaintiff argues that it was not until 2026 that Plaintiff became aware that the address for Moving Defendant had either changed since service was effectuated in 2024 or was incorrect at that time. (Ibid.)

The court finds that dismissal is not warranted under Section 583.410 due to the excusable delay in prosecution. The record demonstrates Plaintiff's diligent attempts to serve Moving Defendant and the parties' attempts to litigate the instant action on the merits.

Accordingly, the motion is denied.

#### IV.

#### CONCLUSION

##### 1.

Defendant 7-Eleven, Inc.'s Demurrer to Plaintiff Juan Turner II's Complaint is SUSTAINED as to the fourth and fifth causes of action. The court will inquire whether leave to amend should be granted at the hearing.

##### 2.

Defendant 7-Eleven, Inc.'s Motion to Dismiss is DENIED.